

TENTATIVE RULING(S) FOR August 26, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2314282

Murphy vs Desert Inn Motel (highly recommended)

TENTATIVE RULING(S):

Before the Court is Defendants' Motion to Tax Costs. The Motion seeks to tax costs from the Memorandum of Costs filed by Plaintiff on May 8, 2026. Plaintiff filed an Opposition supported by the declarations of Germain Labat and Tomas Ross. No reply has been filed as of August 20, 2026.

Having considered the moving and opposing papers, the declarations submitted, and the

I. Court Reporter Fees

Moving Defendants request the court strike \$42,849.50 in court reporter fees. While statutory court reporter fees are allowable under section 1033.5, transcripts of court proceedings not

ordered by the court are not allowable unless expressly authorized by law. (Code Civ. Proc., § 1033.5, subd. (a)(11) and (b)(5).)

Plaintiff contends that these transcripts were essential at trial and were reasonably incurred to protect his rights for post-trial litigation or appellate review. However, Plaintiff fails to cite a specific statute or court order that expressly authorizes these costs. Under section 1033.5, subdivision (b)(5), transcripts are not allowable as costs unless ordered by the court.

Accordingly, the Court grants the request to strike the \$42,849.50 in court reporter fees.

II. Other Fees

Items not mentioned in section 1033.5 and items assessed upon application may be allowed or denied in the court's discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).) Moving Defendants dispute \$49,841.59 in "other fees" and \$11,300.50 in costs for food, lodging, gas, and cleaning. Regarding the prejudgment interest of \$35,155.18, Plaintiff asserts entitlement pursuant to a section 998 offer made on January 13, 2026. The jury subsequently returned a verdict of \$1,734,000, significantly exceeding the \$500,000 offer. The Court finds that Plaintiff's section 998 settlement offer was made in good faith and that he has made a prima facie showing of such by prevailing at trial for a sum significantly greater than the offer. Consequently, Plaintiff is entitled to prejudgment interest at the legal rate of ten percent per annum. (Code Civ. Proc., §§ 998, 3291.) The request to strike this \$35,155.18 is denied.

Regarding the remaining disputed \$14,326.41 and \$11,300.50, the burden is on the Plaintiff to justify these costs by providing evidence that they were reasonable and necessarily incurred.

(*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Plaintiff argues that these costs—including hotel, rental car, and gas—were necessary because former trial counsel, Tomas Ross, did not reside or maintain an office in San Bernardino County. The Court finds that the declaration of Labat fails to provide sufficient information to determine if these costs were reasonable and necessary; rather, they appear to have been incurred for convenience.

Accordingly, the Court strikes the \$14,326.41 and the \$11,300.50 in other costs.

III. Attorney's Fees

Moving Defendants dispute \$3,800 in attorney's fees for outside counsel. Plaintiff has waived this cost claim in his Opposition. Accordingly, the Court strikes the \$3,800 in attorney's fees.

RULING

For the reasons stated above, the Court rules as follows:

1. Moving Defendants' Motion to Tax Costs is granted in part.
2. The following amounts are struck from Plaintiff's Memorandum of Costs:
 - \$42,849.50 (Court reporter fees)
 - \$14,326.41 (Other costs)
 - \$11,300.50 (Other costs)
 - \$3,800.00 (Attorney's fees)
 - Total Struck: \$72,276.41

The Court grants the remaining \$74,567.80 in requested costs.

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CIVSB2517199

Olivas vs TA Operating

TENTATIVE RULING(S):

On December 22, 2025, Defendant TA Operating LLC's (Defendant or TA) filed the instant Motion to Compel Arbitration (Motion), supported by a Request for Judicial Notice and declarations from Eric J. Gitig (Gitig) and Pam Major (Major). Plaintiff Gregory Olivas (Plaintiff) filed his Opposition to the Motion (Opposition) on May 1, 2026, along with a declaration from the Plaintiff and Evidentiary Objections. Defendant filed its Reply on May 7, 2026, along with a Notice of Errata, Evidentiary Objections, a Response to Plaintiff's Evidentiary Objections and a supplemental declaration from Gitig. On May 8, 2026, Plaintiff filed Plaintiff's Evidentiary Objections to Defendant's Reply.